



File No.: EXP202209514

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On May 24, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 25, 2022. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) that she is a co-owner of a property where, without prior authorization, surveillance cameras have been installed facing the public road, in an industrial warehouse rented to third parties by a co-owner, with cameras having been placed outside the façade of the complainant's residence without her consent (…)—page no.1--.

She provides images of the location of the cameras and an email sent to the company that installed the cameras (Documentary Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on September 14, 2022, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On October 14, 2022, a letter was received from the respondent confirming the presence of a video surveillance system, which is indicated with informative signage on the façade, as well as providing a screenshot of some of the cameras.

FOURTH: On November 25, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the modifications made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registration actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or

damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 “in fine” is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will lapse, and consequently, the proceedings will be archived.

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In the present case, we proceed to examine the complaint dated 25/08/22, through which the installation of cameras is reported without the consent of one of the co-owners of the property where they have been installed, which could affect the public and/or private area of the complainant without justified cause.

The content of Article 5.1 letter c) of the GDPR is considered affected, which states: “Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be oriented towards the private property, avoiding intimidation with such devices of nearby homes and/or public space.

Under no circumstances may the cameras record images of the public road or neighboring homes (except for access to the property), as this would fall under the jurisdiction of the State Security Forces and Corps.

The installed cameras must be appropriate for the intended purpose, that is, protection of the main access to the residential area, avoiding affecting the privacy of neighbors or nearby homes, which are impacted by the recording of images.

III

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the complained party may have poorly oriented cameras, affecting the rights of third parties and public space without justified cause.

On the dates 14/10/2022, 14/11/2022, and 02/12/2022, this Agency received written responses providing information about the video surveillance system subject to this complaint.

From the analysis of the same, a contradiction arises between the cameras that state they are active and the images of the field of view of each of the cameras provided to this Agency. In the first case, the complained party states that only nine of the 11 cameras that make up the video surveillance system are active. However, in their last response, they provide the image of the field of view of 13 cameras. In these images, it is observed that public road is captured in a non-proportional manner, at least with camera 11.

The known facts could constitute an infringement, attributable to the complained party, classified under Article 5.1 c) of the GDPR.

Article 72, section 1 letter a) establishes a statute of limitations of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; When motivating the sanction, it is taken into account that it concerns an individual, whose initial allegations are contradictory and unclear in some aspects (e.g., the presence of double signage), with cameras (11 installed) having excessive reach that allow for the induction of control over public space affecting an indeterminate number of individuals; furthermore, the location is a scrap buying/selling establishment in a rental situation through which trucks transit daily with poorly clarified private accesses to this agency, which denotes at least serious negligent conduct if confirmed, proposing an initial sanction of 1500 euros, a sanction situated at the lower end of the scale for such conduct based on the criteria of this agency.

V

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

It is warned that failure to comply with a possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in

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under Article 83.5 and 83.6, such conduct may lead to the initiation of further administrative sanctioning proceedings.

In the event of proceeding with the payment of the proposed fine, you must not forget to specify the measures adopted by providing the necessary documentation, so that all the cameras (numbered) must be explained, determining what they capture and what has been corrected in terms of the angle of view, if applicable.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5.1 c) of the GDPR, classified under Article 83.5 a) of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of the present sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €1500, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in the present procedure. With the application of this reduction, the sanction would be set at €1200, resolving the procedure with the imposition of this sanction.

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Similarly, they may, at any time prior to the resolution of the present procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €1200, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for voluntary payment of the sanction is cumulative with the one that corresponds to be applied for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made manifest within the period granted for formulating allegations to the opening of the procedure.

The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at €900.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above €1200 or €900, they must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 15, 2023, the respondent has proceeded to pay the sanction in the amount of €1200, making use of one of the two reductions provided in the previously transcribed Initiation Agreement. Therefore, the acknowledgment of responsibility has not been established.

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THIRD: The payment made entails the waiver of any action or remedy in the administrative route

against the sanction, in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the imposition of the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which may be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned upon the withdrawal or waiver of any action or remedy in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

Having proceeded with the payment of the pecuniary sanction, in accordance with section 2 of this article, the voluntary payment implies the termination of the procedure, except regarding the restoration of the altered situation. Therefore, it is appropriate to impose the necessary measures to cease the conduct or correct the effects of the infringement.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES: FIRST: TO DECLARE the termination of procedure EXP202209514, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the

fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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